



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2697: expired opioid antagonists; use

WILLOUGHBY FLOOR AMENDMENT

1. Incorporates the HHS Committee amendment.
2. Modifies the definition of an *expired opioid antagonist* to mean an opioid antagonist that is not more than three years past the opioid antagonists' s expiration date.
3. Makes technical and conforming changes.

WILLOUGHBY SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2697

I move the following SUBSTITUTE amendment to the HEALTH & HUMAN SERVICES Committee
Amendment to
HOUSE BILL 2697 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-1979, Arizona Revised Statutes, is amended to
3 read:

4 32-1979. Pharmacists; dispensing opioid antagonists;
5 immunity; definition

6 A. A pharmacist may dispense, pursuant to a standing order issued
7 pursuant to section 36-2266, naloxone hydrochloride or any other opioid
8 antagonist ~~[, INCLUDING ANY EXPIRED OPIOID ANTAGONIST,]~~ that is approved
9 by the United States food and drug administration for a person who is at
10 risk of experiencing an opioid-related overdose or to a family member or
11 community member who is in a position to assist that person.

12 B. A pharmacist who dispenses naloxone hydrochloride or any other
13 opioid antagonist ~~[, INCLUDING ANY EXPIRED OPIOID ANTAGONIST,]~~ pursuant to
14 subsection A of this section shall instruct the individual to whom the
15 opioid antagonist is dispensed to summon emergency services as soon as
16 practicable after administering the opioid antagonist.

17 C. This section does not affect the authority of a pharmacist to
18 fill or refill a prescription for naloxone hydrochloride or any other
19 opioid antagonist that is approved by the United States food and drug
20 administration.

21 [D. A PHARMACIST MAY PROVIDE, WITHOUT COMPENSATION, A KIT THAT
22 CONTAINS NALOXONE HYDROCHLORIDE OR ANY OTHER OPIOID ANTAGONIST THAT IS
23 APPROVED BY THE UNITED STATES FOOD AND DRUG ADMINISTRATION TO TREAT A DRUG
24 OVERDOSE, INCLUDING ANY EXPIRED OPIOID ANTAGONIST, TO A PERSON WHO IS AT
25 RISK OF EXPERIENCING OR WHO IS EXPERIENCING AN OPIOID-RELATED OVERDOSE.]

1 ~~[D.]~~ [E. FOR THE PURPOSES OF SECTION 36-2267, SUBSECTION B TO
2 ADDRESS OPIOID OVERDOSE EMERGENCIES.] a pharmacist who dispenses an opioid
3 antagonist~~[, INCLUDING]~~ [OR PROVIDES] ANY EXPIRED OPIOID ANTAGONIST~~[,]~~
4 pursuant to this section is immune from professional liability and
5 criminal prosecution for any decision made, act or omission or injury that
6 results from that act if the pharmacist acts with reasonable care and in
7 good faith, except in cases of wanton or wilful neglect.

8 ~~[E.]~~ [F.] FOR THE PURPOSES OF THIS SECTION, "EXPIRED OPIOID
9 ANTAGONIST" MEANS AN OPIOID ANTAGONIST THAT [HAS AN EXPIRATION DATE THAT]
10 IS [LESS] [NOT MORE] THAN [FIVE] [THREE] YEARS [FROM] [PAST] THE [OPIOID
11 ANTAGONIST'S EXPIRATION] DATE [OF USE].

12 Sec. 2. Section 36-192, Arizona Revised Statutes, is amended to
13 read:

14 36-192. County health departments; naloxone kits; definition

15 A. The department and the Arizona health care cost containment
16 system shall continue to distribute naloxone kits as necessary. In
17 addition, a county health department may provide to a person who is at
18 risk of experiencing or who is experiencing an opioid-related overdose a
19 kit that contains naloxone hydrochloride or any other opioid antagonist,
20 INCLUDING ANY EXPIRED OPIOID ANTAGONIST, that is approved by the United
21 States food and drug administration for the treatment of a drug overdose.

22 B. FOR THE PURPOSES OF THIS SECTION, "EXPIRED OPIOID ANTAGONIST"
23 MEANS AN OPIOID ANTAGONIST THAT [HAS AN EXPIRATION DATE THAT] IS [LESS]
24 [NOT MORE] THAN [FIVE] [THREE] YEARS [FROM] [PAST] THE [OPIOID
25 ANTAGONIST'S EXPIRATION] DATE [OF USE].

26 Sec. 3. Section 36-798.51, Arizona Revised Statutes, is amended to
27 read:

28 36-798.51. Overdose and disease prevention programs;
29 requirements; standards; definition

30 A. A city, town, county or nongovernmental organization, including
31 a local health department or an organization that promotes scientifically
32 proven ways of mitigating health risks associated with drug use and other
33 high-risk behaviors, or any combination of these entities, may establish
34 and operate an overdose and disease prevention program. A program
35 established pursuant to this section shall have all of the following
36 objectives:

37 1. To reduce the spread of viral hepatitis, HIV and other
38 bloodborne diseases in this state.

39 2. To reduce needle-stick injuries to law enforcement officers and
40 other emergency personnel.

41 3. To encourage individuals who inject drugs to enroll in
42 evidence-based treatment.

43 4. To increase proper disposal of used syringes.

44 5. To reduce the occurrence of skin and soft tissue wounds and
45 infections related to injection drug use.

46 B. A program established pursuant to this section shall offer all
47 of the following:

1 1. Disposal of used needles and hypodermic syringes.
2 2. Needles, hypodermic syringes and other injection supply items at
3 no cost and in quantities sufficient to ensure that needles, hypodermic
4 syringes and other injection supply items are not shared or reused.
5 3. Educational materials on all of the following:
6 (a) Overdose prevention.
7 (b) Peer support services.
8 (c) The prevention of HIV, viral hepatitis transmission and the
9 incidence of skin and soft tissue wounds and infections.
10 (d) Treatment for mental illness, including treatment referrals.
11 (e) Treatment for substance use disorder, including referrals for
12 substance use disorder treatment.
13 4. Access to kits that contain naloxone hydrochloride or any other
14 opioid antagonist, **INCLUDING ANY EXPIRED OPIOID ANTAGONIST**, that is
15 approved by the United States food and drug administration to treat a drug
16 overdose, or referrals to programs that provide access to naloxone
17 hydrochloride or any other opioid antagonist, **INCLUDING ANY EXPIRED OPIOID**
18 **ANTAGONIST**, that is approved by the United States food and drug
19 administration to treat a drug overdose.
20 5. For each individual who requests services, personal
21 consultations from a program employee or volunteer concerning mental
22 health or substance use disorder treatment or referrals for evidence-based
23 substance use disorder treatment, as appropriate.
24 C. A program established pursuant to this section shall develop
25 standards for distributing and disposing of needles and hypodermic
26 syringes based on scientific evidence and best practices. The number of
27 needles and hypodermic syringes disposed of through a program shall be at
28 least equivalent to the number of needles and hypodermic syringes
29 distributed through the program.
30 **D. FOR THE PURPOSES OF THIS SECTION, "EXPIRED OPIOID ANTAGONIST"**
31 **MEANS AN OPIOID ANTAGONIST THAT ~~[HAS AN EXPIRATION DATE THAT] IS [LESS]~~**
32 **~~[NOT MORE] THAN [FIVE] [THREE] YEARS [FROM] [PAST] THE [OPIOID~~**
33 **~~ANTAGONIST'S EXPIRATION] DATE [OF USE].~~**
34 Sec. 4. Section 36-2266, Arizona Revised Statutes, is amended to
35 read:
36 **36-2266. Prescribing and dispensing; immunity; definitions**
37 A. A physician who is licensed pursuant to title 32, chapter 13 or
38 17, a nurse practitioner licensed pursuant to title 32, chapter 15 and
39 authorized by law to prescribe drugs or any other health professional who
40 has prescribing authority and who is acting within the health
41 professional's scope of practice may prescribe or dispense, directly or by
42 a standing order, naloxone hydrochloride or any other opioid antagonist ~~[,~~
43 ~~INCLUDING ANY EXPIRED OPIOID ANTAGONIST,]~~ that is approved by the United
44 States food and drug administration for use according to the protocol
45 specified by the physician, nurse practitioner or other health
46 professional to a person who is at risk of experiencing an opioid-related
47 overdose, to a family member of that person, to a community organization

1 that provides services to persons who are at risk of an opioid-related
2 overdose or to any other person who is in a position to assist a person
3 who is at risk of experiencing an opioid-related overdose.

4 B. A physician, nurse practitioner or other health professional who
5 prescribes or dispenses naloxone hydrochloride or any other opioid
6 antagonist ~~[, INCLUDING ANY EXPIRED OPIOID ANTAGONIST,]~~ pursuant to
7 subsection A of this section shall instruct the individual to whom the
8 opioid antagonist is dispensed to summon emergency services as soon as
9 practicable, either before or after administering the opioid antagonist.

10 [C. A PHYSICIAN, A NURSE PRACTITIONER OR ANY OTHER HEALTH
11 PROFESSIONAL WHO IS LICENSED IN THIS STATE MAY PROVIDE, WITHOUT
12 COMPENSATION, A KIT THAT CONTAINS NALOXONE HYDROCHLORIDE OR ANY OTHER
13 OPIOID ANTAGONIST THAT IS APPROVED BY THE UNITED STATES FOOD AND DRUG
14 ADMINISTRATION TO TREAT A DRUG OVERDOSE, INCLUDING ANY EXPIRED OPIOID
15 ANTAGONIST, TO A PERSON WHO IS AT RISK OF EXPERIENCING OR WHO IS
16 EXPERIENCING AN OPIOID-RELATED OVERDOSE.]

17 ~~[C.]~~ [D.] Except in cases of gross negligence, wilful misconduct
18 or intentional wrongdoing, a physician, nurse practitioner or other health
19 professional who in good faith prescribes or dispenses an opioid
20 antagonist~~[, INCLUDING ANY]~~ [OR PROVIDES AN] EXPIRED OPIOID ANTAGONIST[;]
21 [FOR THE PURPOSES OF SECTION 36-2267, SUBSECTION B TO ADDRESS OPIOID
22 OVERDOSE EMERGENCIES] pursuant to subsection A of this section is immune
23 from professional liability and criminal prosecution for any decision
24 made, act or omission or injury that results from that act if the
25 physician, nurse practitioner or other health professional acts with
26 reasonable care and in good faith.

27 ~~[D.]~~ [E.] For the purposes of this section: ~~;~~

28 1. "EXPIRED OPIOID ANTAGONIST" MEANS AN OPIOID ANTAGONIST THAT ~~[HAS~~
29 ~~AN EXPIRATION DATE THAT]~~ IS ~~[LESS]~~ [NOT MORE] THAN ~~[FIVE]~~ [THREE] YEARS
30 ~~[FROM]~~ [PAST] THE [OPIOID ANTAGONIST'S EXPIRATION] DATE ~~[OF USE]~~.

31 2. "Person" includes an employee of a school district or charter
32 school who is acting in the person's official capacity.

33 Sec. 5. Section 36-2267, Arizona Revised Statutes, is amended to
34 read:

35 36-2267. Administration of opioid antagonist; exemption from
36 civil liability; definitions

37 A. A person may administer an opioid antagonist, INCLUDING ANY
38 EXPIRED OPIOID ANTAGONIST, ~~[that is prescribed or dispensed pursuant to~~
39 ~~section 32-1979 or 36-2266 in accordance with the protocol specified by~~
40 ~~the physician, nurse practitioner, pharmacist or other health professional~~
41 ~~or that is received from a county health department pursuant to section~~
42 ~~36-192]~~ to a person who is experiencing an opioid-related overdose.

43 B. A person who in good faith and without compensation administers
44 an opioid antagonist, INCLUDING ANY EXPIRED OPIOID ANTAGONIST, to a person
45 who is experiencing an opioid-related overdose is not liable for any civil
46 or other damages as the result of any act or omission by the person
47 rendering the care or as the result of any act or failure to act to

1 arrange for further medical treatment or care for the person experiencing
2 the overdose, unless the person while rendering the care acts with gross
3 negligence, wilful misconduct or intentional wrongdoing.

4 C. For the purposes of this section: ~~,~~

5 1. "EXPIRED OPIOID ANTAGONIST" MEANS AN OPIOID ANTAGONIST THAT ~~[HAS~~
6 ~~AN EXPIRATION DATE THAT]~~ IS ~~[LESS]~~ ~~[NOT MORE]~~ THAN ~~[FIVE]~~ ~~[THREE]~~ YEARS
7 ~~[FROM]~~ ~~[PAST]~~ THE ~~[OPIOID ANTAGONIST'S EXPIRATION]~~ DATE ~~[OF USE]~~.

8 2. "Person" includes an employee of a school district or charter
9 school who is acting in the person's official capacity.

10 Enroll and engross to conform

11 Amend title to conform

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